

		The Court GRANTS Plaintiff's request for judicial notice of Exhibits 12-14 pursuant to Evidence Code section 452(d) as court records, and Exhibit 15 pursuant to Evidence Code section 452(h) as "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy," but declines to take judicial notice of the truth of hearsay statement therein. Plaintiff to give notice.
4	Mejia Villa vs. Castaneda 23-01314626	Motion to Compel Deposition (Oral or Written) Plaintiff Sarai Mejia Villa ("Plaintiff") filed a motion to compel the deposition of Defendant Daniel March ("Defendant"). Plaintiff requests \$2,580 in sanctions. As an initial matter, Plaintiff still has not shown proof of service of the motion on Defendant. In the opposition, however, Defendant notes that he was served by email on March 17, 2025. Code of Civil Procedure section 2025.450(a) authorizes the Court to compel a party's attendance and testimony at deposition and produce documents described in the deposition notice if, after service of a deposition notice and without having served a valid objection, the party fails to appear for examination or fails to proceed with it. Here, the Court finds that Defendant has not failed to appear or proceed with his deposition. In the opposition, Defendant advised the Court that he does not oppose the taking of his deposition. Rather, Defendant requested that his deposition be continued because (1) Defendant was experiencing health issues, including a stroke and cardiovascular surgery, (2) Defendant filed a demurrer the operative complaint, and (3) Defendant wanted an opportunity to determine whether he would retain counsel to represent him in this matter. Defendant also argues that he communicated his request for a continuance to Plaintiff's counsel and Plaintiff's counsel did not response to Defendant's communications prior to filing this motion. Given the above, the Court finds that an order compelling the deposition of Defendant March is unwarranted at this time, as Defendant has neither failed to appear for examination nor refused to proceed with the examination.

		The Motion is DENIED WITHOUT PREJUDICE. No sanctions are awarded. The Court has been notified by Counsel that deposition is currently set for June 4, 2025. The Court sets a Review Hearing for June 10, 2025, 9:30. Plaintiff to give notice.
5	Bigalimov vs. Tapia 24-01389070	1) Demurrer to Amended Complaint 2) Motion to Strike- Anti SLAPP 3) Case Management Conference Defendant Gafe Pizza Inc. moves for an order striking the entire FAC of Plaintiff Rolan Bigalimov on the grounds that the allegations arise out of Defendant's exercise of the right of petition and to free speech and it is not probable that Plaintiff will prevail on his claims. Code of Civil Procedure section 425.16 provides in relevant part: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the Court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." This section is to be construed broadly. (Code Civ. Proc., § 425.16(a).) The court's determination of an anti-SLAPP motion is a two-step process. First, the court determines if the party moving to strike a cause of action has met its initial burden to show that the cause of action arises from an act in furtherance of the moving party's right of petition or free speech. Then, if the court determines that showing has been made, the court determines whether the opposing party has demonstrated a probability of prevailing on the claim. (Navellier v. Sletten (2002) 29 Cal.4th 82, 88.)